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United States District Court, N.D. California

MANN
v.
META PLATFORMS INC.

Case No. 24-cv-09348-VC
Decided September 22, 2025
Opinion of the court

Attorneys and Law Firms Gerald Mann, Tucson, AZ, Pro Se

ORDER RE: MAGISTRATE JUDGE'S REPORT AND RECOMMENDATION

VINCE CHHABRIA, United States District Judge The Court has received the magistrate judge's Report and Recommendation and notes that there are no objections to the Report. Although the Court is unsure of the magistrate judge's conclusion that the lawsuit is barred by Section 230 of the Communications Decency Act, what's clear is that the amended complaint fails to state a claim for failure to warn or for negligent infliction of emotional distress. Indeed, the complaint is frivolous in these regards. Accordingly, it is dismissed for lack of jurisdiction. See Pratt v. Sumner, 807 F.2d 817, 819 (9th Cir. 1987) (“Dismissal for want of jurisdiction may occur ... where a claim is ‘wholly insubstantial and frivolous.’ ”) (quoting Bell v. Hood, 327 U.S. 678, 682-83 (1946)). IT IS SO ORDERED